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February 11, 2025

By: Boren

An Act relating to state fiscal affairs; amending 62 O.S. 2021, Section 34.36, which relates to the state agency estimate of funds needed; and modifying the information required on certain form to include certain technology needs and estimated expenditures.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 62 O.S. 2021, Section 34.36, is amended to read as follows:

Section 34.36. A. On the first day of October preceding each regular session of the Legislature, each state agency, including those created or established pursuant to constitutional provisions, shall report to the Director of the Office of Management and Enterprise Services and the Chair and Vice Chair of the Legislative Oversight Committee on State Budget Performance an itemized request showing the amount needed for the ensuing fiscal year beginning with the first day of July.

B. The forms which must be used in making these reports shall be approved by the Director of the Office of Management and

1 Enterprise Services and the Legislative Oversight Committee on State
2 Budget Performance.

3 C. The forms shall be uniform, and shall clearly designate the
4 information to be given.

5 D. The information provided shall include, but not be limited
6 to:

7 1. A budget analysis of existing and proposed programs
8 utilizing performance-informed budgeting techniques. Such analysis
9 shall be included as a part of the estimate of funds needed;

10 2. A statement listing any other state, federal or local
11 agencies which administer a similar or cooperating program and an
12 outline of the interaction among such agencies;

13 3. A statement of the statutory authority for the missions and
14 quantified objectives of each program;

15 4. A description of the groups of people served by each program
16 in the agency;

17 5. A quantification of the need for the program;

18 6. A description of the tactics which are intended to
19 accomplish each objective;

20 7. A list of quantifiable program outcomes which measure the
21 efficiency and effectiveness of each program;

22 8. A ranking of these programs by priority;

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1 9. Actual program expenditures for the current fiscal year and
2 prior fiscal years and the number of personnel required to
3 accomplish each program;

4 10. Revenues expected to be generated by each program, if any;

5 11. With respect to appropriated state agencies, a detailed
6 listing of all employees and resources dedicated to the provision of
7 financial services including but not limited to procurement,
8 payroll, accounts receivable and accounts payable. The provisions
9 of this paragraph shall not be applicable to the Oklahoma State
10 Regents for Higher Education or to any institutions within The
11 Oklahoma State System of Higher Education; ~~and~~

12 12. A certification that following the effective date of this
13 act and prior to July 1, 2011, no expenditure shall have been made
14 or funds encumbered for the purchase, lease, lease-purchase or
15 rental of any computers, software, telecom, information technology
16 hardware, firmware or information technology services, including
17 support services without the prior written approval of the State
18 Comptroller or his or her designee; and

19 13. A quantification of information technology and technology
20 needs and estimated expenditures for those information technology
21 and technology needs, including expenditures for information
22 technology services and systems pursuant to the Information
23 Technology Consolidation and Coordination Act of Section 35.1 of
24 this title.

1 E. These appropriated agencies shall make an itemized estimate
2 of needs for the ensuing fiscal year and the following two (2)
3 fiscal years and request for funds for the ensuing fiscal year and
4 an estimate of the revenues from all sources to be received by the
5 agency during the ensuing fiscal year and the following two (2)
6 fiscal years.

7 F. The Director of the Office of Management and Enterprise
8 Services shall submit to the Governor and the Legislative Oversight
9 Committee on State Budget Performance no later than the fifth day of
10 October a complete list of all spending agencies which have failed
11 to submit budgets by October 1.

12 G. The reports required by this section shall include an
13 itemized listing of outstanding capital lease debt and estimated
14 capital lease needs for the ensuing fiscal year and the following
15 two (2) fiscal years, and shall be provided on forms prescribed by
16 the Director of the Office of Management and Enterprise Services.

17 H. For the purposes of this section, "capital lease" means a
18 lease-purchase agreement which provides an option for the State of
19 Oklahoma or its agencies to purchase property, including personal
20 and real property, which is the subject thereof and/or a lease
21 agreement that provides an option for the State of Oklahoma or its
22 agencies to lease such property, which is the subject thereof, at a
23 nominal annual amount, after a period in which leased property is
24 rented at fair market value.

1 I. The provisions of this section shall not apply to CompSource
2 Oklahoma if CompSource Oklahoma is operating pursuant to a pilot
3 program authorized by Sections 3316 and 3317 of Title 74 of the
4 Oklahoma Statutes.

5 J. Not later than January 1, the Director of the Office of
6 Management and Enterprise Services shall publish a shared services
7 cost-performance assessment report documenting the amount of each
8 state agency's cost for providing shared services. The lowest
9 ranking state agencies shall enter into a contract with the Office
10 of Management and Enterprise Services for the provision of shared
11 financial services, provided that the Director of the Office of
12 Management and Enterprise Services determines that implementation of
13 such a contract would be feasible and documents that the contractual
14 agreement will result in cost savings or efficiencies to the state.
15 Contracts required by this subsection shall be entered into at the
16 start of the next fiscal year. When a state agency is contracted
17 with the Office of Management and Enterprise Services for the
18 provision of shared financial services, the agency may discontinue
19 using shared services when documentation showing that the agency can
20 provide the services at a lower cost to the state is provided to and
21 approved by the Director of the Office of Management and Enterprise
22 Services. As used in this subsection, "shared services" means
23 process, resource utilization or action as defined by administrative
24 rule. On a yearly basis the Director of the Office of Management

1 and Enterprise Services shall compile and publish a report
2 documenting the cost savings resulting from shared services
3 contracts. The provisions of this subsection shall not be
4 applicable to the Oklahoma State Regents for Higher Education or to
5 any institutions within The Oklahoma State System of Higher
6 Education.

7 COMMITTEE REPORT BY: COMMITTEE ON RETIREMENT AND GOVERNMENT
8 RESOURCES
9 February 11, 2025 - DO PASS
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